

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

X

MICHAEL ORTIZ

Plaintiff,

against –

ECF
COMPLAINT

Index N0.

Jury Trial Demanded

CITY OF NEW YORK, NEW YORK CITY POLICE
 COMMISSIONER JAMES P. O'NEIL, IN HIS
 INDIVIDUAL AND OFFICIAL CAPACITY,
 P.O. JUAN GOMEZ, IN HIS INDIVIDUAL
 CAPACITY, P.O. JOHN DOE NO. 1, IN HIS
 INDIVIDUAL CAPACITY, P.O. JOHN DOE
 NO. 2, HIS INDIVIDUAL CAPACITY, AND
 P.O. JOHN DOE NO. 3, IN HIS INDIVIDUAL
 CAPACITY,

Defendants,

X

1. Plaintiff, **MICHAEL ORTIZ**, by his attorney, Welton K. Wisham, of the Law Office of Welton K. Wisham, alleges upon information and belief the following against Defendants, The City of New York, New York City Police Commissioner James P. O'Neil, Police Officers, Juan Gomez Shield No. 27475, and John Does 1-3 as follows that;

JURISDICTION

2. This Court has personal jurisdiction over the Defendants because the defendants transacted business within the State of New York within the meaning of CPLR Section 302(a) (1), and causing injury to the Plaintiff within the State of New York, Bronx County. This Court has concurrent Jurisdiction to hear Plaintiff's federal causes of action under 42 U.S. C. Section 1983.

VENUE

3. The Plaintiff selects Bronx County as the venue for which this action is commence. Venue is predicated on Plaintiff's residence in Bronx, New York, as set forth under McKinney's Consolidated Laws of New York Civil Practice Law and Rules Section 503(a).

PARTIES

4. Plaintiff Michael Ortiz is a citizen of the United States and at all times here relevant resided in Bronx, County, and State of New York.

5. That at all times relevant herein, Defendants Police Officers Juan Gomez, Shield No. 27475, and police officers John Does 1-3, were duly appointed as police officers assigned to the 52nd police precinct, Bronx, New York, and were acting within the scope of their employment as employees of the New York City Police Department on the date of this incident.

6. That the Defendant police officers named herein, upon information and belief, are current members of the New York City Police Department assigned to the 52nd police precinct located in Bronx, New York.

7. That the individual police officers involved in the incident underlying this lawsuit were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment by Defendant, City of New York, and were duly appointed police officers in the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

8. That the Defendant, City of New York, is a municipal corporation within the State of New York.

9. That Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

10. That at all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

11. At all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

12. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, and procedures, including the appointment, training, supervision, discipline and retention of the Defendant officers complained of herein.

13. That at all times relevant hereto, Defendant City of New York was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and of the State of New York.

14. That Defendant officer Juan Gomez was assigned to the 52nd police precinct located in the Bronx, New York and was, at all times here relevant, acting in the capacity of an agent, servant and employee of the City of New York.

15. That officer Gomez was responsible for supervising the unlawful stop, frisk, search and harassment of Plaintiff Ortiz on or about August 11, 2017.

16. That officer Gomez is sued in his individual for violating Mr. Ortiz's constitutional rights as more fully set forth herein.

17. That officers John Doe No. 1-3 were also directly involved in the illegal stop, search and frisk of Plaintiff Ortiz on or about August 1, 2017.

18. That police officers John Doe No. 1-3, are sued in their individual capacity for violating Plaintiff's constitutional rights as more fully set forth herein.

19. At all times here mentioned Defendant police officers were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City, and State of New York.

20. Defendant New York City Police Commissioner James P. O'Neil is and was at all times relevant herein, the Police Commissioner for the City of New York and is and was responsible for the policies, practices and or customs of the New York City Police Department

21. That Commissioner O'Neil is and was responsible for the training , retention, supervision, discipline, counseling and control of the Defendant New York City Police Officers under his command who are and were employed by the NYPD.

22. Commissioner O'Neil is being sued in his official capacity.

PRELIMINARY STATEMENT

23. This is a civil rights action in which Plaintiff seeks relief for the violation of his civil rights secured under the provisions of 42 U.S.C Section 1983, and under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

FACTUAL ALLEGATIONS

24. That on or about August 11, 2017, at approximately 5:55 p. m. Mr. Ortiz was walking down the street on 183rd Street, near Davidson Ave., Bronx, New York when he was observed by the Defendant police officers from inside their unmarked police vehicle.

25. That officer Gomez and several other police officer jump out of their unmarked police vehicle and grabbed Plaintiff by placing their hands on Plaintiff's back and between his legs.

26. That officer Gomez then placed his hands inside Mr., Ortiz's pants and commenced an illegal search of the Plaintiff.

27. That Officer Gomez and the other police officers placed their hands between Plaintiff's legs and around Plaintiff groin.

28. That officer Gomez said to Plaintiff "You know how you guys play!"

29. The officer pushed Plaintiff up against a wall during their unlawful search of the Plaintiff.

30. The Defendant officers placed their hands in the pants pocket of the Plaintiff and searched inside Plaintiff's pockets.

31. The officers were driving an unmarked police vehicle bearing license plate number FXK3226.

32. That Mr. Ortiz had not been engaged in any criminal activity at the time of the unlawful stop, frisk and search, and that the City of New York through the New York City Police Department was continuing its unlawful practice of targeting males Hispanics for it was found to have had a widespread practice of stopping and frisking members within the minority community.

33. That on August 12, 2013, the Honorable United States District Court Judge. Shira A. Scheindlin, held that the City of New York had in fact engaged in the unlawful stop and frisk of hundreds of thousands of African American and Hispanic males by targeting such group as to have created an policy, and practice of which violated the Fourth, and Fourteenth Amendment to the Constitution of the United States. **David Floyd et. al., v. City of New York**, et. al. 813 F. Supp. 417 (2011).

34. That the **Floyd Court** held that the New York City Police Department was liable for violating Floyd's Fourth Amendment right to be free from unreasonable stop and frisk and

searches without individualized reasonable suspicion. Floyd v. City of New York et.al. 08 Civ. 1034.

35. The Honorable Judge Scheindlin held that the New York City Police Department had in fact, senior officials which were deliberately indifferent to their police officers conducting unconditional stops and frisks, and that such practices were found to have been widespread that they had become the force of law.

36. That such unlawful practices were in effect on August 11, 2017, which caused officer Juan Gomez, and three other unidentified Defendant police officers to engage in the illegal practice of stopping and frisking Plaintiff Michael Ortiz without individualized reasonable suspicion.

37. As a consequence thereof, Plaintiff has been injured.

38. That at all times during the events described herein, the Defendants were engaged in a joint venture and formed an agreement to violate Plaintiff's constitutionally protected rights.

39. That the Defendant officers assisted each other in performing the various unlawful actions described herein and lent their physical presence and support and the authority of their office to each other during the stated events described herein by willfully forcing Plaintiff against a wall and conducting an unlawful stop, frisk and search without legal justification and individualized articulated reasonable suspicion.

40. That the Defendant officers acted maliciously with intent to violate Plaintiff's rights.

41. That as a direct and proximate result of the acts of Defendants, plaintiff suffered injuries and damages:

42. That the Defendants violated Plaintiff's right to Due Process of Law under the Fourteenth Amendment to the Constitution of the United States.

43. That the Defendants violated Plaintiff's right to be free from unlawful search and seizures under the Fourth Amendment to the United States Constitution.

44. Mr. Ortiz was subjected to and suffered undue emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, inconvenience, and anxiety.

45. That the Defendants officers' actions are part of a broader pattern of systemic abuse of police power that has become prevalent in this police precinct and most minority communities in violation of a Court order to cease and desist such unconstitutional practices.

46. That Defendant Gomez's abuse of his position in this incident is not just a violation of plaintiff's individual constitutional rights; it is a symptom of one cause of the defect in broader police to community relations.

47. That officers Gomez, and John Doe 1-3, and the New York Police Department have a duty as servants of the law to follow procedures that are put in place to protect the rights of all the citizens of the United States as outlined in the Constitution of the United States, including those of Plaintiff Michael Ortiz.

48. Officers Gomez and Officers John Doe 1-4, failed their duty to faithfully execute the responsibilities of their position and to protect the rights of Plaintiff Michael Ortiz.

49. That the City of New York and the NYPD failed their duty to properly supervise, train or discipline the individual Defendant officers.

50. That the unlawful action by the Defendant police officers' overly aggressive actions, puts the lives of citizens in jeopardy particularly the lives of black and Hispanic young men.

51. That according to Judge Scheindlin's decision in Floyd, "The NYPD practice of making stops that lack individualized reasonable suspicion has been so pervasive and persistent

as to become not only a part of the NYPD's standard operating procedure, but a fact of daily life in some New York City neighborhoods. Id at 180.

52. That the Court in the Floyd case found that City of New York and the New York City Police Department violated the Fourteenth Amendments rights of minority through a "policy of "indirect racial profiling based on local criminal suspect data" Id. At 181.

53. The City of New York acknowledged and defended the NYPD policy of conducting stops based on criminal suspect data of which race is a primary fact." The NYPD implements this policy by emphasizing to officers the importance of stopping "the right people." In practice, officers are directed, sometimes expressly, to target certain racially defined groups for stops. "Id.

54. That Plaintiff, Michael Ortiz was targeted and stop based on a discriminatory policy of stopping and frisking and harassing men of color including black and Hispanic men.

55. That the Defendant officers intended to violate Plaintiff's constitutional rights .

56. The Defendants were motivated by a discriminatory purpose for which if forbidden under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

57. That the New York City Police Department carries out more stops and frisk where there are more black and Hispanic residents thereby contravening the Fourth and Fourteenth Amendments to the United States Constitution.

58. That the City of New York has a custom of conducting stops and frisks with deliberate indifference to the constitutional deprivations caused by its employees, namely employees of the New York City Police Department.

59. That supervisors within the New York City Police Department routinely fail to monitor or review the productivity of its police officers.

60. That New York City Police Department supervisors fail to adequately ensure that an officer has made a proper record of a stop so that it can be reviewed for its constitutionality. Floyd v. City of New York, et, al, 959 F.Supp.2d 540, 562 (S.D.N.Y.2013) (“Floyd Liability Order”).

FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS PURSUANT TO 42 U.S.C SECTION 1983, FOR
VIOLATING PLAINTIFF’S RIGHTS UNDER THE FOURTH AMENDMENT TO THE
CONSTITUTION OF THE UNITED STATES

61. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “60” with the same force and effect as though more fully set forth at length herein.

62. That at all times herein mentioned the Plaintiff, was unlawfully seized, detained, restrained and frisked on or about August 11, 2017.

63. That the Defendants City of New York, New York City Police Commissioner James P. O’Neil, Police Officer Juan Gomez and John Does 1-3, have implemented, enforced, encouraged, and sanction a policy, practice and or custom of unlawfully stopping and frisking individuals without the constitutionally required and articulated individualized reasonable suspicion that Mr. Ortiz was or had been engaged in unlawful criminal activity on the date and time that he was stopped by officer Gomez and the three other unnamed New York City police officers.

64. Plaintiff was made to fear for his life as a result of the Defendant’s wrongful and unconstitutional actions described and set forth herein.

65. That plaintiff suffered emotional pain, humiliation, and degradation, due to the Defendant’s police officers illegal seizure.

66. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably stopped and frisked Plaintiff reasonable suspicion to have believed that Plaintiff was engaged in unlawful activity.

67. That the New York City Police Department practices and policies and constitutional abuses which led to Plaintiff's unlawful stop and frisk on or about August 11, 2017, were directly and proximately caused by policies , practices, and or customs devised , implemented , enforced, encouraged and sanctioned by the City of New York and by Police Commissioner O'Neil including (failure to adequately and properly train and or supervise the Defendant New York City police officers and (2) failure to properly and adequately monitor and discipline NYPD officers and (3) the overt and tacit encouragement and sanctioning of , and the failure to rectify the New York City Police Department's suspicionless stop and frisk practices.

68. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably seized the Plaintiff and caused Plaintiff's incarceration for sixty two days in Rikers Island.

69. Mr. Ortiz suffered emotional distress, trauma, embarrassment, ridicule, scorn, and depravation of his civil rights caused by the Defendant's police officers unlawful accusations.

70. Defendants' unlawful actions were done willfully and knowingly with the specific intent to deprive Plaintiff of his constitutional rights.

71. That the Defendants have acted with deliberate indifference to Plaintiff's fourth amendment right to be free from unreasonable searches and seizures.

72. That as a direct and proximate result of the acts or omissions of each of the Defendants set forth herein, Mr. Ortiz's Fourth Amendment rights have been violated.

73. That the Defendants , acting under color of state law to deprive Plaintiff of his Fourth Amendment rights , are in violation of 42. U.S.C Section 1983, which prohibits the deprivation under color of state law of rights secured under the Constitution of the United States.

74. That the Defendant officers and the New York City Police Department intentionally targets blacks and Hispanics individuals for illegal stops and frisks in areas which are predominantly Black and Hispanic.

75. As consequence thereof, Plaintiff has been greatly injured.

SECOND CAUSE OF ACTION
PURSUANT TO 42. U.S.C. SECTION 1983 AGAINST ALL DEFENDANTS FOR THE VIOLATION OF THE EQUAL PROTECTION CLAUSE OF THE FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES.

76. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 75”, with the same force and effect as though more fully set forth at length herein.

77. That at all time herein mentioned and upon information, and belief, the Defendant Police Officers were, and still are, members of the New York City police officer assigned to the Fifty second (52) police precinct located in the Bronx New York.

78. That at all time herein mentioned the defendant, City of New York, maintained, operated, and controlled the Police Department within the City of New York.

79. That at all times hereinafter mentioned the police officers employed by the Defendant City of New York, were servants, agents, and/or employees of the defendant City of New York, and were acting within the scope of their employment.

80. That the defendants, their agents, servants, and/or employees, intentionally, and without legal justification, unlawfully, and unreasonably, stopped, and frisked and searched Mr. Ortiz on

August 11, 2017, without individualized reasonable suspicion that Plaintiff had been or was involved in criminal activity.

81. That at all time herein mentioned, and based upon information and belief, Plaintiff Ortiz was falsely imprisoned, detained, restrained, stopped and searched by the individual Defendant police officers who were members of the New York City Police Department of the City of New York, who were agents, servants and/or employees of the defendant, City of New York, and who were acting under and within the scope of their employment at the time of the incident complained of herein.

82. That at all times herein mentioned, the Defendants intended to stop, search and frisk the Plaintiff without privilege of law.

83. That the City of New York through the New York City Police Department, Police Commissioner O'Neil and officers Juan Gomez , John Does 2-3, have implemented and enforced a policy, practice and or custom of stopping and frisking individuals including Mr. Ortiz, based solely on race and or national origin.

84. That policy of the New York City Police Department is to stop and frisk black and Hispanic men without the requisite individualized reasonable suspicion required by the constitution.

85. As a direct and proximate result thereof, the New York City Police Department's policy, practice and or custom of allowing its members of the force to conduct suspicionless stops, searches and frisks violate the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

86. That the NYPD's constitutional abuses were and are directly and proximately caused by practices and policies and or customs of the New York City Police Department which have

been devised, implemented , enforced encouraged and sanctioned by the City of New York, Commissioner O' Neil, including (1) failure to adequately and properly train, and supervised officers of the New York City Police Department, (2) failure to adequately and properly monitor and discipline the NYPD and its officers (3) encouraging and sanctioning of and failure to rectify the New York City Police Department's use of racial and or national origin in profiling and stopping and frisking minority individuals without the requisite individualized reasonable suspicion.

87. That the Defendants have all acted with deliberate indifference to Mr. Ortiz's Fourteenth Amendment right to be free from unlawful stops, frisks, and searches without the requisite individualized reasonable suspicion and free from such unlawful stops, frisks and searches based on race.

88. That as a direct and proximate result of the Defendants unlawful policies, practices and customs, Plaintiff Ortiz suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of his civil rights, and freedom, under the Constitution of the United States.

89. That the stop, frisk and detention complained of herein of the Plaintiff by the Defendant police officers constituted a malicious act, and was a wanton and reckless degradation of the Plaintiff's liberty.

90. That the Defendants acted under color of state law in depriving Mr. Ortiz of his Fourteenth Amendment rights in violation of 42 U.S.C. Section 1983.

SECOND CAUSE OF ACTION
**PURSUANT TO 42 U.S.C. SECTION 1983 AGAINST DEFENDANTS JUAN GOMEZ
AND POLICE OFFICERS JOHN DOES 1-3**

91. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 90". with the same force, and effect, as though more fully set forth at length herein.

92. Defendants initiated Plaintiff's stop, frisk and unlawful search without articulated reasonable suspicion to have believed that Plaintiff was engaged in unlawful criminal activity at the time of the incident complained of herein.

93. That the conduct of police officers Juan Gomez and John Does 1-3, in stopping and frisking and searching Plaintiff on or about August 11, 2017, was performed under color of state law without reasonable suspicion.

94. That as a direct and proximate result of such acts, Defendants police officers Gomez and John Does 1-3, deprived Mr. Ortiz of his rights under the Fourth and Fourteenth Amendments in violation of 42 U.S. C. Section 1983.

95. That a direct and proximate result of the constitutional abuses complained of herein, Mr. Michael Ortiz suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom.

96. That as a direct, and proximate result of the acts, and omissions of the Defendants herein described, the Plaintiff was caused to suffer great physical pain and agony, and was caused great emotional pain, anguish and suffering and harm.

97. That in the manner describes herein, the Defendants acted carelessly and recklessly and wantonly and with total disregard of the plaintiff's constitutional rights.

98. That the Defendants knew, or should have known that their actions would or probably would inflict extreme emotional distress upon the plaintiff.

THIRD CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO 42. U.S.C SECTION 1983 AGAINST DEFENDANT POLICE OFFICERS JUAN GOMEZ AND JOHN DOES 1-3.

99. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 98”, with the same force, and effect, as though more fully set forth at length herein.

100. That the false imprisonment, detention, and restriction of Plaintiff’s freedom, constituted a malicious act, and was a wanton and reckless degradation of the plaintiff’s liberty and freedom.

101. The common law tort of false arrest is a species of false imprisonment, and action derived from the ancient common- law action of trespass [that] protects the personal interest of freedom from restraint of movement.” **Singer v. Fulton County Sheriff**, 63 F. 3d 110. (2d Cir. 1995) (quoting **Broughton v. State of New York**, 37 N.Y. 2d at 93, 335 N.E 2d at 314.

102. That there are four elements of a false imprisonment claim: (1) the defendant intended to confine the plaintiff, (2), the plaintiff was conscious of the confinement, (3) the plaintiff did not consent to the confinement, and (4) the confinement was not otherwise privileged.” **Id.** The **Singer Court** also cited **Hygh v. Jacobs**, 961 F 2d 359. at 366 (“the elements of a claim of false arrest under section 1983 are substantially the same as the elements of a false arrest claim under New York Law.”

103. Plaintiff’s claim under section 1983 for false arrest recognizes the same state elements, but also rests on the right of the individual to be free from unreasonable seizures, including arrest without probable cause.

104. Mr. Ortiz was intentionally and unlawfully confined by the Defendants, police officers in that Plaintiff was sufficiently and significantly deprived of his liberty, and was not free to move, his liberty was severely restricted by the Defendant officers.

105. Plaintiff was conscious of defendant's illegal restraint and was well aware of the facts that he was being tormented by Officers Gomez, and John Does 1-3, without reasonable suspicion.

106. The officers lacked knowledge or reasonable trustworthy information sufficient to warrant a person of reasonable caution in the belief that Plaintiff had been engaged in an unlawful offense thus justifying the Plaintiff's prolonged detention.

107. As a direct and proximate cause of Defendants unlawful actions, Plaintiff was caused to have suffered harm and sever emotional stress, and loss of liberty.

FOURTH CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK FOR MUNICIPAL LIABILITY UNDER 42
U.S.C. SECTION 1983.

108. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered"1 through "107" with the same force and effect as though more fully set forth at length herein.

109. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff's constitutional rights which caused the violation of such rights.

110. The Defendants unlawful actions were done willfully, knowingly and with specific intent and deliberate indifference to Plaintiff's constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

111. That the acts, omissions, and practices alleged herein constitute a pattern or practice of conduct embedded within the New York City Police Department including the 52nd police precinct which the Commission of the New York City Police Department was aware of such violation caused the violation of the rights privileges and immunities of the Plaintiff which are secured or protected by the Constitution of the United States.

112. That the New York City Police Department's conduct amounted to a policy of deliberate indifference to Plaintiff's constitutional rights to be free from an unlawful detention without probable cause.

113. That the law recognizes several ways in which a municipal policy can be set by a municipality to cause it to be liable under section 1983. 1) the explicit setting of a policy by the government that violates the Constitution, 2) the action of a policy makers within the government, 3) the adoption through a knowing failure to act by a policy maker of actions by his subordinates that are so consistent that they have become custom or 4) the failure of the government to respond to an obvious need for better training of its employees in such a manner as to show "deliberate indifference "to the risk that not addressing the need will result in constitutional violations.

114. That the Defendants knew or should have known of the deficiencies alleged herein and that the New York City Police Department's failure to supervise, or adequately train Defendants Gomez, and the John Does police officers involved in this incident who were deliberately indifferent to the Plaintiff's Constitutional rights protected under the Fourth, and Fourteenth Amendments.

115. That the Defendants' deliberate indifference caused the violations of the constitutional rights alleged herein.

116. Defendant City of New York through the New York City Police Department's practice of harassing young males of African and Hispanic descent by unlawfully stopping, frisking and searching them without individualized reasonable suspicion, constitutes a practice that, upon information and belief, is widespread and resulted in an impediment of Plaintiff's constitutional right.

117. The acts and omissions set forth herein were carried out by the aforementioned individual Defendants, and subordinates in their official capacity as police officers of the New York City Police Department pursuant to the customs, policies and practices, within the New York City Police Department under the supervision of Commissioner James P. O'Neil under color of state law.

118. That the failure to supervise train and or discipline the Defendant officers resulted in a custom, policy or practice that served as the moving force behind the constitutional violations suffered by Plaintiff Michael Ortiz.

119. As a direct and proximate result of the foregoing practices and customs, Plaintiff was l justification.

120. That the policy makers within the City of New York and the New York City Police Department including commissioner James O'Neil, knew or should have known that the policies in effect during the time of the Plaintiff's unlawful seizure and detention were being ignored, and that the Defendants were deliberately indifferent to Mr. Ortiz's constitutional rights.

121. The policy makers within the New York City Police Department had constructive knowledge of the foreseeable injuries to the Plaintiff as set forth above and failed to do anything about it.

122. Plaintiff's right to be free from arbitrary government actions including the right to be free from unreasonable search and seizure which caused Plaintiff's injuries without legal justification, was clearly established on August 11, 2017.

123. That the constitutional abuses, and violations by the City of New York through the actions of the Defendant officers and employees, were directly and proximately caused by policies, practices and customs developed, implemented, enforced, encouraged, and sanctioned by the Defendant, City of New York.

124. As consequence thereof, Plaintiff has been greatly injured.

FIFTH CAUSE OF ACTION
AGAINST DEFENDENT POLICE OFFICER JUAN GOMEZ AND JOHN DOES 1-3,
FOR THE INTENTIONAL INFLICTION OF EMOTIONAL STRESS

125. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "124" with the same force and effect as though more fully set forth at length herein.

126. That the Defendant police officers, agents, servants and/or employees, engaged in actions intended to inflict emotional trauma on the Plaintiff.

127. That by reason of the foregoing, the Plaintiff has suffered physical pain and suffering, mental and emotional distress due to Defendants unlawful and reckless actions as more fully described herein.

128. Plaintiff's claim for the Intentional Infliction of Emotional Distress was caused by the Defendant New York City Police officers who intentionally and without reason, privilege or reasonable suspicion, caused Mr. Ortiz to be stopped, frisked, and searched without legal justification.

129. New York State Law for the Claim of Intentional Infliction of Emotional Distress is well established and recognized throughout the State of New York. The tort has four (4) elements; 1) extreme and outrageous conduct, 2), intent to cause severe emotional distress, 3), a causal connection between the conduct and the injury, and 4) severe emotional distress. **Howell v. New York Post Co.**, 81 N.Y. 2d 115, 121, 596 N.Y.2d 350, 353, 612 N.E. 2d 699, 702 (1993).

130. New York Court have recognized this claim when the conduct complained of “ is so outrageous and character and so extreme in degree as to go beyond all possible bounds of decency, and to be regarded as atrocious and utterly intolerable in a civilized society.” **Murphy v. American Home Products Corp.**, 58 N.Y. 2D 293, 303, 461 N.Y.S.2d 232 ,236, 448 N.E. 2d 86, 90 (1983).

131. The acts committed against the Plaintiff by the Defendant police officers was clearly intended to cause the Plaintiff extreme physical damage to his mind and body by willfully and deliberately failing to produce a surveillance video and failing to name the alleged victim who was allegedly assaulted by the Plaintiff on or about August 11, 2017.

132. That the officers intentionally placed Plaintiff in apprehension of fear and imminent harm and offensive contact by Defendants’ unlawful and unprivileged confinement of the Plaintiff which caused Plaintiff serious emotional injuries to the Plaintiff, for which Plaintiff now seeks compensation.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

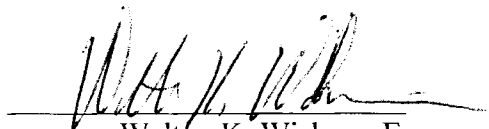
B. Awarding punitive damages to Plaintiff in an amount that would punish Defendant officers Juan Gomez and John Doe 1-3, for their willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated; January 27, 2018
New York, New York



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